

26PR00375 Estate of Estate of Henry Louis Pollak, Jr

County: santa-barbara

Division: Decedent's Estate

Hearing date: 2026-09-22

Motion: Petition for Probate and Letters Testamentary

Source URL: <https://www.santabarbara.courts.ca.gov/tentative-ruling/26pr00375>

Source SHA-256: 80b69c317da3bb839c8537a347b17abae329c58103e508a2b328537e07e1ef3a

Tentative Ruling: Estate of Estate of Henry Louis Pollak, Jr

Case Number

26PR00375

Case Type

Decedent's Estate

Hearing Date / Time

Tue, 09/22/2026 - 21:00

Nature of Proceedings

Petition for Probate and Letters Testamentary

Tentative Ruling

Probate Notes:

The following must be submitted:

Proof of Publication. The Proof of Publication is woefully defective. Jurisdiction of the Probate Court is obtained by publication in accordance with Article 3 of Division 7, Part 2, Chapter 2 Probate Code. (Prob. Code, § 8003(b).)

Publication requires the notice to be published in a newspaper adjudicated as a newspaper of general circulation in the city of decedent's residence (Prob. Code, §§ 8121, 7122) and to contain the substantially same language and format shown in Probate Code section 8100. The Proof of Publication shows the language of the publication does not even remotely resemble the language required by Section 8100 of the Probate code.

The error in publication likely occurred, because the Notice of Hearing was not given on the proper Judicial Council form, DE-121 (see note below).

REPUBLICATION IS REQUIRED BECAUSE OF THE DEFECT. Substantial compliance is not possible.

Proof of Service of Notice of Hearing (Form DE-121). Notice must be given 15 days prior to hearing, served on all known heirs and devisees, as well as on the Personal Representative (if not the petitioner) and special notice requestors, on the mandatory Judicial Council form, DE-121. (Prob. Code, §§ 8100 & 8110.) Notice must be sent to the person, not the person's representative. (§1220.) Petitioner gave notice on DE-120, which is not proper.

RE-NOTIFICATION IS REQUIRED BECAUSE OF THE DEFECT.

Supplement to the Petition. A supplement to the petition listing the relationship of all known heirs must be provided. (Pet. at ¶8.) Paragraph 8 of the petition specifically requires listing the relationship of the listed heirs.

Proposed Order (Form DE-140). A proposed order must be submitted with relief that matches that requested in the petition. No such document was filed with the court.

Proposed Letters (Form DE-150). Proposed letters must be submitted with relief that matches that requested in the petition. No such document was filed with the court.

Due to the publication and notice defects above, the matter must be continued to a date to be set by the Court at the hearing, unless the party appears and requests a different date, or submits a request for a different continuance date prior to the hearing. (Local Rule 1721(c)(2)(A-B).) If the matter is continued, documents must be submitted at least 10 days prior to the new hearing date to be considered.

Due to staffing limitations, processing times may be delayed. To assist in processing, attorneys and parties should include the next court date in the "Filing Description" field provided by the electronic service provider. That field is also used for further descriptions of the document being e-filed, so be sure to put the calendar date FIRST in the field – BEFORE any further description of the document being e-filed (e.g.: 06/28/16 For XYZ).

Judges

Judge James Rigali

,